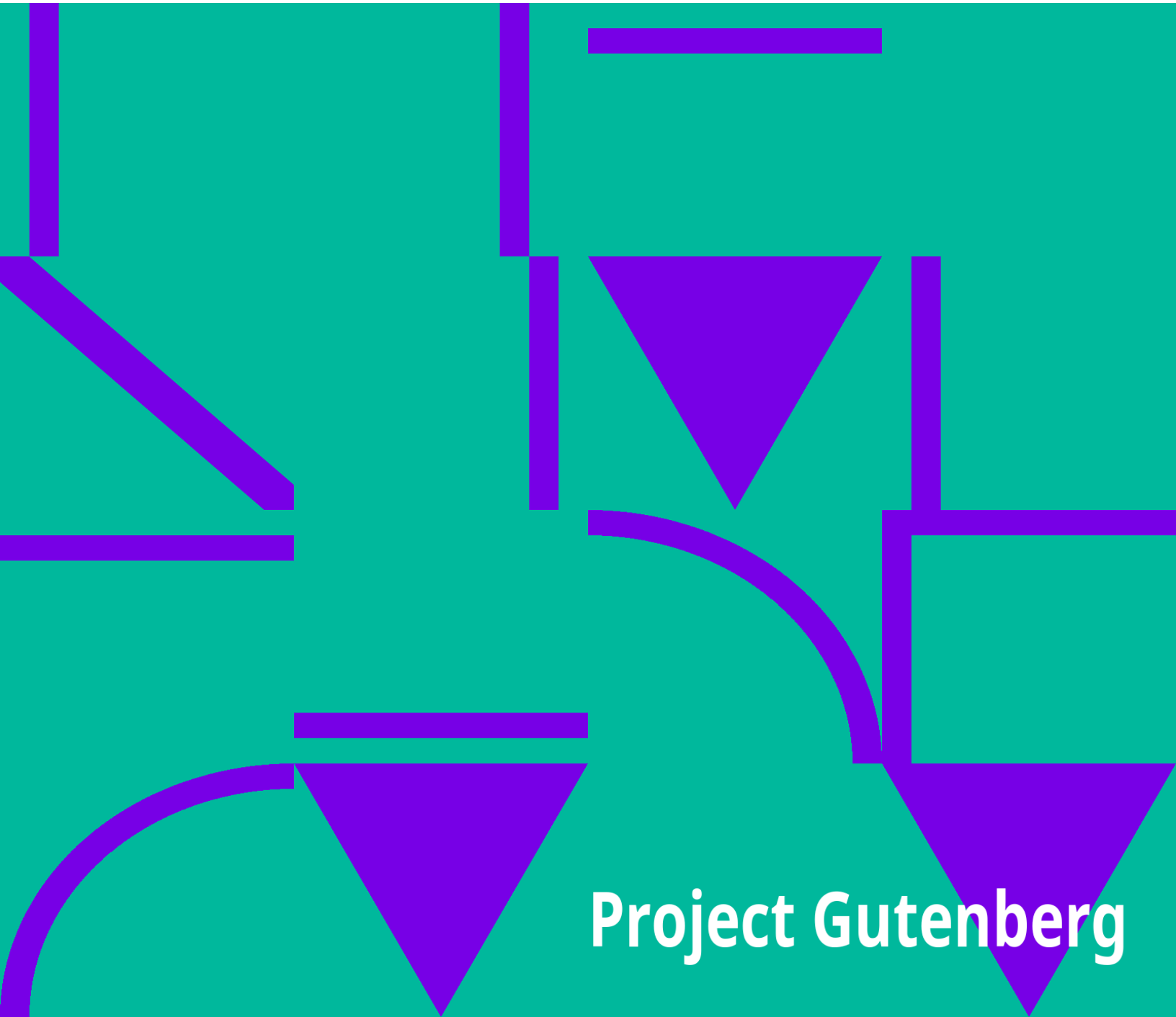


The Mysterious Sketch

Erckmann-Chatrian



Project Gutenberg

The Mysterious Sketch

Erckmann-Chatrian

Project Gutenberg

The Project Gutenberg eBook of The Mysterious Sketch

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

*** This is a COPYRIGHTED Project Gutenberg eBook. Details Below.

*** Please follow the copyright guidelines in this file. ***

Title: The Mysterious Sketch

Author: Erckmann-Chatrian

Translator: Michael Wooff

Release date: May 2, 2011 [eBook #36013]

Language: English

Other information and formats: www.gutenberg.org/ebooks/36013

*** START OF THE PROJECT GUTENBERG EBOOK THE
MYSTERIOUS SKETCH ***

<pre id="pg-header"> The Project Gutenberg eBook, The Mysterious Sketch, by Emile Erckmann, et al, Translated by Michael John Wooff

This eBook is for the use of anyone anywhere at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org

** This is a COPYRIGHTED Project Gutenberg eBook, Details Below
** ** Please follow the copyright guidelines in this file. **

Title: The Mysterious Sketch

Author: Emile Erckmann

Release Date: May 2, 2011 [eBook #36013]

Language: English

***START OF THE PROJECT GUTENBERG

</pre>

Copyright (C) 2011 by Michael John Wooff

The mysterious sketch

by Emile Erckmann (1822-1899) and Alexandre Chatrian (1826-1890)

I

Opposite the Saint Sebaldus Chapel in Nuremberg rises up a little inn, tall and narrow, with a jagged gable, dusty windows and a plaster cast of Our Lady on top of its roof. It was here that I spent the unhappiest days of my life. I had gone to Nuremberg to study the old German masters, but, due to a lack of liquidity, I had to paint portraits...and what portraits they were! Fat purveyors of tittle-tattle with a cat on their knees, aldermen in wigs, burgomasters wearing a three-cornered hat and the whole thing set off by luminous ochre and cinnabar by the bucketful.

From portraits I descended to sketches and from sketches to outlines.

Nothing can be worse, believe me, than to constantly have on your back a head steward, tight-lipped, shrill, impudent-looking, who comes to you every day with: "So then! How soon will you be paying, sir? Have you any idea how much your bill is now? No. It doesn't bother you, does it?... Sir eats, drinks and sleeps as he pleases... Does not our heavenly Father feed even the birds of the air? Sir's bill comes to four hundred schillings and ten kreuzer... It's hardly worth mentioning, I know."

Those who have not heard this scale being sung can have no concept of it - love of art, imagination, a sacred passion for the beautiful all dry up under the withering breath of such a browbeater... You grow gauche and timid, all your energy dissipated along with any feeling of personal dignity.

One night, penniless as usual, and threatened with debtor's prison by that worthy steward Rap, I decided I would thwart his hopes of payment by

slitting my throat. With this pleasant thought in mind, sitting on my truckle bed opposite the window, I gave myself up to a thousand philosophical reflexions of varying degrees of cheerfulness. I did not dare to open my razor for fear that the irresistible force of my reasoning might well instil in me sufficient courage to do away with myself once and for all. Having argued with myself in this way, I blew out my candle, deferring the conclusion to this line of thought to the morrow.

This abominable Rap had driven me completely round the bend. All I could do now artistically was draw silhouettes and my only desire was to have the money to rid myself of this awful man's odious presence. But that night my mind performed a singular about-turn. I woke up going on for one o'clock, relit my light and, wrapping around me my grey smock, dashed down on paper a quick sketch reminiscent of an old Dutch master... something strange, bizarre and bearing no resemblance to my usual style.

Picture a dark courtyard hemmed in by high dilapidated walls...These walls are furnished with hooks seven or eight feet from the ground. Even at a cursory glance we may guess that this is a shambles of some sort.

On the left there is a latticework made up of narrow strips. Through it you can see a side of beef suspended from an enormous ceiling by enormous pulleys. Broad pools of blood run down over paving stones and meet up in a drain full of undefined debris.

The light comes down from on high, from between chimneys, against which weathervanes are silhouetted by a piece of sky only as big as your hand and the roofs of neighbouring houses drop their shadows dramatically from one floor to another.

At the end of this recess is a space. In this space is a woodshed, on this woodshed ladders, a few bales of straw, rope, a hen-coop and an old rabbit

hutch that has seen better days.

How did these heterogeneous details come to present themselves to my imagination?... I do not know. I had no memories of things like this and yet each stroke of my charcoal pencil was a fantastic feat of observation by dint of being true to nature. Nothing was missing!

But on the right of the picture one corner of the sketch remained blank. I knew not what to put there... Something was stirring and moving about... Suddenly I saw a foot, a foot in the air, a foot off the ground. Despite its improbable position, I followed my inspiration without understanding where all this was leading. This foot bordered on a leg...over the tensely stretched-out leg there soon floated part of a dress...To cut a long story short an old woman appeared, rumped, dishevelled, haggard, successively leaning backward over the edge of a well and fighting against a fist that was strangling her...

I was drawing a murder scene. The charcoal pencil fell from my hand.

This woman, posed in the most brazen of attitudes, the small of her back pushed up against the coping of the well, her face twisted in terror, her two hands tightly attached to the arm of the murderer, frightened me... I did not dare to look at her. But the man himself, the owner of this arm, I could not see... It was impossible for me to finish what I was doing.

"I'm tired," I told myself, my brow bathed in sweat. "I only have this one figure still to do. I'll finish it tomorrow... It shouldn't be hard."

And I went back to bed, scared half to death by my vision. Five minutes later I was fast asleep.

The following day I was up at the crack of dawn. I had just got dressed and was preparing myself to take up where I had left off when two short knocks resounded at the door:

"Come in!"

The door opened. A man already in the twilight of his life, tall, thin, dressed in black, appeared on the threshold. The face of this man, his eyes set close together, his great hook nose over which loomed a broad, bony brow had something stern about it. He greeted me solemnly.

"Mr Christian Venius, the painter?" he said.

"I am he, sir."

He bowed once more, giving his own name:

"Baron Frederick Van Spreckdal."

The appearance in my poor hovel of the rich art collector Van Spreckdal, a judge in the criminal court, made a strong impression on me. I could not stop myself from casting a surreptitious glance at my old worm-eaten furniture, my damp tapestries and my dusty floor. I felt humiliated by such a squalid state of affairs... But Van Spreckdal did not seem to pay any attention to these things and promptly sat down at my little table:

"Mister Venius," he went on, "I've come to..."

But, just then, his eyes came to rest on the incomplete sketch.... he failed to finish his sentence. I had seated myself on the edge of the truckle bed and the sudden attention given by this person to one of my works made my heart beat faster with a feeling of apprehension that was difficult to define.

After a minute Van Spreckdal raised his head:

"Are you the author of this sketch?" he asked, now giving me his undivided attention.

"Yes, sir."

"What are you asking for it?"

"I don't sell my sketches... It's the rough draft for a picture."

"I see," he said, lifting up the paper with the tips of his long yellow fingers. He took a magnifying glass from his waistcoat pocket and started to study the drawing in silence.

The sun's rays were, at this time of day, falling obliquely into my garret. Van Spreckdal did not breathe a word; his big nose curved into a claw, his thick eyebrows contracted, and his protruding chin created a thousand wrinkles in his long sunken cheeks. The silence was so impenetrable that I could hear quite distinctly the plaintive buzzing of a fly caught in a spider's web.

"And how big is this picture going to be, Mister Venius?" he said without even looking at me.

"Three feet by four feet."

"What will you charge for the picture?"

"Fifty ducats."

Van Spreckdal placed the drawing on the table and took out of his pocket a drooping green silk purse, elongated into the shape of a pear. He slid the rings in order to open it.

"Fifty ducats then," he said. "There you have them."

I went dizzy.

The baron got up, said goodbye to me and I heard his great ivory-handled cane knock against each step till he finally came to the bottom of the stairs. Then, waking up from my temporary stupor, I suddenly remembered that I had not thanked him, and I ran down those four flights of stairs as quick as a flash. But, when I got to the door, it was in vain that I looked both right and left - the street was deserted.

"Well! Fancy that!" I said to myself. "Here's a how-d'you-do!"

And I went back up the stairs quite out of breath.

II

The surprising way in which Van Spreckdal had just appeared to me threw me into a deep trance: "Yesterday," I said to myself as I contemplated the pile of ducats sparkling in the sunshine, "yesterday I formed the culpable intention of cutting my throat for the lack of a few miserable schillings and today good fortune smiles on me unbidden... A good job then I didn't open my razor and, if ever the temptation to do away with myself overtakes me again, I'll take care to put the thing off to the following day."

After these judicious reflexions, I sat down to finish the sketch. Four strokes of the charcoal pencil and that would be that. But here an unfathomable disappointment awaited me. I found it impossible to make these four strokes. I had lost the thread of my inspiration and the mysterious personage would not emerge from the limbo of my brain. It was in vain that I evoked it, mapped it out, went back to it — it was no more in keeping

with the whole than a figure by Raphael would be in a David Teniers smoke-filled snug... I was sweating cobs.

To cap it all Rap, in accordance with his habitual good manners, opened the door without knocking, his eyes becoming glued to my pile of ducats. Then he cried out in a voice like a yelp:

"Aha! I've caught you. Will you persist in telling me now, Mr Painter, that you're short of money?..."

And his claw-like fingers advanced with that nervous trembling that the sight of gold always arouses in misers.

For a few seconds I stood there stupefied.

The memory of all the open snubs that this individual had inflicted on me, his covetous gaze, his insolent smile, everything about him exasperated me. In a single bound I seized him and, pushing him out of my bedroom with both hands, I flattened his nose with the door.

This was all done with the crack and the rapidity of a jack-in-the-box.

But outside the old usurer was shrieking like an eagle:

"I want my money! Thief! I want my money!"

The other tenants were coming out of their rooms and asking questions:

"What's wrong? What's happening?"

I opened the door again abruptly and dispatched a kick to the spine of Mister Rap that promptly sent him reeling down more than a score of stairs:

"That's what's happening!" I cried, beside myself. Then I locked the door and bolted it while the laughs of my neighbours greeted Mister Rap as he fell.

I was pleased with myself and rubbed my hands together joyfully. This adventure had put new life into me. I went back to the task in hand and was going to finish the sketch when my ears were assailed by an out of the ordinary noise.

Rifle butts were being struck against the pavement... I looked out of my window and saw three gendarmes, their carbines grounded, their cocked hats crosswise, standing on guard at the main entrance.

"Has that scoundrel Rap broken something?" I said to myself in fear and trembling.

And see what a strange thing the human mind is: I, who had wanted to cut my own throat just the previous day, shuddered to the marrow of my bones when I reflected that I might well be hanged if Rap was dead.

The stairwell filled with a hubbub of noises... There was a rising tide of muffled footfalls, the metallic clink of weapons and brief verbal exchanges.

Suddenly they tried to open my door. It was closed!

Then there was a general commotion.

"In the name of the law...open up!"

I got to my feet all of a-quiver, my legs virtually giving way under me.

"Open up!" the same voice repeated.

Seeing that flight was impossible, I stumbled towards the door and turned the key to unlock it.

Two fists instantly clamped themselves on my shoulders. A short thickset man, smelling of wine, said to me:

"I'm arresting you!"

He was wearing a bottle-green frock coat buttoned up to the chin, a stovepipe hat...had great brown sideburns...rings on all his fingers and was called Passauf...

He was the chief of police.

Five bulldog heads adorned with flat caps, with long, sharp noses and lower jaws protruding like hooks, were watching me from outside the door.

"What do you want?" I asked Passauf.

"Come downstairs with us," he shouted out abruptly, motioning to one of his men to grab me.

The latter dragged me out, more dead than alive, while the others ransacked my room from top to bottom.

I went down, held up by my armpits, like a man in the third stage of consumption...my hair flapping about my face and tripping with each step I took.

They threw me into a hansom next to two strapping fellows who were kind enough to show me the ends of two clubs attached to their wrists by a leather strap....then the carriage set off.

I could hear following on behind us the running footsteps of all the town's youngsters.

"What have I done?" I asked one of my guards.

He looked at his companion with a strange smile and said:

"Hans...he's asking what he's done!"

That smile made my blood run cold.

Soon the carriage was enveloped in deep shadow and the hooves of the horses echoed under a vault. We were entering the Rasperhaus or Penitentiary...I was escaping Rap's tender mercies only to end up in a dungeon from which not many poor devils have had the opportunity to extricate themselves.

Big dark courtyards; lines of windows just like in a hospital decked with guttering; not so much as a tuft of grass or a festoon of ivy, not even a weathervane in prospect...such were my new lodgings. It was enough to make you tear your hair out by the fistful.

The policemen, accompanied by the jailer, showed me into a temporary cell.

The jailer, if memory serves me right, was called Kasper Schlüssel and, with his grey woollen bonnet, the stem of his pipe stuck between his teeth and the bunch of keys on his belt, he came over to me like the Owl god people worship in the Caribbean. He had his great round gilded eyes that can see in the dark, his curved nose and his bull neck.

Schlüssel locked me up with a minimum of fuss like a person putting socks into a wardrobe, his mind elsewhere. As for me, my hands behind my

back, head bowed, I stood there for more than ten minutes without moving from the spot. Then I looked at my cell. It had just been newly whitewashed and its walls were still empty of graffiti, apart from a gallows roughly drawn in one corner by the previous inmate. The light came through a bull's-eye window situated nine or ten feet up from the floor; the furniture consisted of a bale of straw and a bathtub.

I sat down on the straw, my hands around my knees, in a state of dejection beggaring belief....

Almost simultaneously I heard Schlüssel crossing the corridor. He reopened the door of my cell and told me to follow him. He still had as his attendants the two shillelagh men. Resolutely I dogged his heels.

We passed through long galleries lit here and there by internal windows. I perceived behind a grille the notorious Jick-Jack who was due to be executed the following day. He was wearing a strait jacket and singing in a raucous voice:

"I am the king of these mountains!"

When he saw me, he shouted:

"Yo, comrade! I'll keep a place for you at my right hand."

The two policemen and the Owl god exchanged smiles with one another while I could feel goose bumps up and down my spine.

III

Schlüssel shepherded me into a very dark, high-ceilinged courtroom, furnished with benches in a semi-circle. The appearance of this deserted courtroom, its two high windows protected by grilles, its crucifix of old

oakwood stained brown on which the arms of Christ lay stretched out with the head sorrowfully resting on a shoulder, awoke in me I know not what religious fear in keeping with my present situation and my lips moved as they framed a prayer.

I had not prayed for a long time, but misfortune always takes us back to thoughts of submissiveness... Man is such a small thing!

Facing me, on a raised dais, two people were sitting with their backs to the light, which kept their faces shaded from me. I could see it was Van Spreckdal, however, by his aquiline nose picked out by a slanting reflection of the pane. The man with him was fat - he had plump, full cheeks and wore a judge's robe, as did Van Spreckdal.

Sitting below them was the clerk of the court, Conrad. He was sitting at a low table, tickling the lobe of his ear with the feather of his quill pen. He stopped when I arrived to look at me with curiosity.

I was made to sit down and Van Spreckdal, raising his voice, spoke to me:

"Christian Venius, where did you get this drawing from?"

He showed me the nocturnal sketch then still in his possession. It was passed to me... After I had examined it, I answered:

"I drew it myself."

This utterance on my part was followed by a fairly long silence; the clerk of the court, Conrad, was writing down my answer. I heard his pen hurrying over the paper and thought: "What does the question I have just been asked mean? It has no connection with the kick that I aimed at Rap's back."

"You drew it yourself," Van Spreckdal resumed. "What is the subject of it?"

"It's a subject out of my own head."

"You didn't copy these details from somewhere?"

"No, sir. I imagined all of them."

"The accused would do well to reflect on the truth of what he is saying," said the judge severely. "Do not lie to the court."

I went red in the face and cried out exaltedly:

"I have told it the truth."

"Write that down, clerk of the court," Van Spreckdal ordered.

The quill pen raced afresh.

"And this woman," the judge went on, "this woman being murdered on the edge of a well... Did you imagine her as well?"

"I must have done."

"You've never seen her before?"

"Never."

Van Spreckdal got to his feet as if indignant, then, sitting down again, appeared to consult in a low voice with his fellow judge.

Those two dark profiles, silhouetted against the light-filled backdrop of the window, the three men standing behind me...the silence in the

amphitheatre...all these things made me shudder.

"What have they got against me? What have I done?" I muttered to myself.

Suddenly Van Spreckdal said to my guards:

"Take the prisoner back to the carriage. We're leaving for the Metzgerstrasse."

Then he addressed me directly:

"Christian Venius," he cried, "the situation that you find yourself in is most regrettable...Pull yourself together and consider that if human justice is unbending...you can still seek the pardon of a merciful God...You can even merit it by confessing your crime!"

These words stunned me like a blow from a hammer...I recoiled from them with arms outstretched crying:

"My God! What a nightmare!"

And I fainted.

When I came round the carriage was rolling slowly through the street and another carriage was in front of us. The two policemen were still there. One of them, while we were still moving, offered a pinch of snuff to his colleague. I too automatically stretched out my fingers to the snuffbox, but he pulled it away from me sharply.

I felt my face go red with shame and I turned my head to one side in order to hide my emotion.

"If you look outside," said the owner of the snuffbox, "we'll have to put handcuffs on you."

"I hope the devil strangles you, you scurvy knave!" I thought to myself inwardly. And as the carriage had just stopped, one of them got down while the other held me back by the neck. Then, seeing his comrade ready to catch me, he pushed me out roughly.

These infinite precautions to ensure I did not run away augured nothing good, but I still had not the foggiest idea of just how serious the accusation was that was hanging over me when a frightful incident finally opened my eyes to it and plunged me into despair.

I had just been pushed into a low alleyway with broken and uneven flagstones. All along the wall there ran a yellowish ooze exhaling a fetid stench. I walked among shadows with the two men behind me. Further on the chiaroscuro of an internal courtyard began to become visible.

As I approached it, I was possessed by an ever-increasing sense of terror. There was nothing natural about it, just a harrowing feeling of impending doom, nightmarish, unnatural. I instinctively drew back from it with each forward step that I took.

"Get along with you!" one of the policemen shouted, putting his hand on my shoulder. "Walk, damn you!"

Imagine my sense of dread when, at the end of this passage, I saw the courtyard I had drawn the night before with its walls furnished with hooks, its heaps of scrap metal, its hencoop and its rabbit hutch.... Not one skylight big or small, high or low, not one cracked pane of glass, not a single detail in my drawing had been left out!

I was transfixed by this bizarre turn of events.

Near the well were the two judges, Van Spreckdal and Richter. At their feet lay the old woman, supine...her long grey hair dishevelled... her face blue...her eyes open inordinately wide...and her tongue caught in her teeth.

It was horrendous!

"Well," Van Spreckdal said to me solemnly, "what have you got to say for yourself?"

I chose not to answer.

"Do you admit to having thrown this woman, Theresa Becker, down this well after strangling her to steal her money?"

"No!" I shouted. "No! I don't know this woman! I've never seen her before! As God is my witness!"

"You've said enough," he retorted drily.

And he strode off, without any further ado, in the company of his colleague.

The policemen then saw fit to put the handcuffs on me. I was taken back to the Rasperhaus in a catatonic state. I no longer knew what to think...even my conscience was plaguing me. I started to wonder myself if I really had murdered the old woman!

In my guards' eyes I was guilty.

I will not tell you what my emotions were during that night in the Rasperhaus when, sitting on my bale of straw, with a skylight facing me and a gallows to look at, I heard the nightwatchman dissipate the silence with

cries of: "Sleep, good people of Nuremberg, the Lord is watching over you! One o'clock!...Two o'clock!...Three o'clock and all's well!"

Everyone must have some idea of what such a night is like.

Daylight came - pale and hesitant at first, it lit the bull's-eye window with its glimmers and the criss-crossed bars,...then it burst out upon the far wall. Outside the street grew busy. There was a market that day. It was Friday. I could hear the creaking of the carts laden with vegetables and the good country folk burdened by baskets on their backs. A few hens in cages squawked as they passed by and women selling butter chatted among themselves. The market hall opposite was being opened to the public...the stalls were being arranged.

Finally it was broad daylight and the vast buzz of the swelling crowd, of housewives coming together with their basket under their arm, coming and going, talking and haggling, told me that it was eight o'clock in the morning.

With the coming of the light, my heart regained a little of its confidence. Some of my darker ideas evaporated. I felt the desire to see what was happening outside.

Other prisoners before me had raised themselves up as far as the bull's-eye, having made holes in the wall so as to climb it more easily...I climbed up it in my turn and when, as I sat in the oval hollow, my back bent, my head leaning forward, I was able to see the crowd, life, movement...my tears trickled copiously down my cheeks...I no longer contemplated suicide...I felt a need to live, to breathe in air that was truly extraordinary.

"Ah!" I said to myself. "To live is to be happy!...They can make me push a wheelbarrow and attach to my leg a ball and chain.... What does it

matter? As long as I can go on living!..."

While I was gazing thus, a man went by, a butcher, bent over double, carrying an enormous side of beef on his shoulders. His arms were bare right up to his elbows, his head was bent forward...A mop of long hair hid from me his face and yet, as soon as I laid eyes on him, I gave a start...

"He's the one!" I said to myself.

All my blood flowed back on my heart...I descended to my cell, trembling to the tips of my fingernails, feeling my cheeks wobble and my face flood with a deathly pallor and I stammered in a muffled voice:

"It's him! He's there...he's there...and I'm going to die in his place to expiate his crime...Good God!...What shall I do? What shall I do?..."

I suddenly had an idea, an idea crossed my mind like manna from heaven...My hand went into my jacket pocket!...The box containing my charcoal was there.

Then, rushing towards the wall, I began to copy the murder scene with unprecedented vigour. No more uncertainty, no more trial and error. I knew the man... I could see him... He was posing for me.

At ten o'clock the jailer came into my cell. His owl-like impassiveness gave way to admiration.

"Can such things be?" he cried, standing in the doorway.

"Go and fetch my judges," I said to him, pursuing my work with mounting excitement as I did so.

"They're waiting for you in the courtroom," Schlüssel added.

"I want to tell them something," I cried, putting the finishing touches to the mysterious protagonist.

He was alive. He was frightening to look upon. His face, seen from the side, foreshortened on the wall, stood out against the white background with a prodigious presence.

The jailer left me.

A few minutes later the two judges appeared. They stood there open-mouthed.

As for me, my arm outstretched and trembling in every limb, I said to them:

"Behold the murderer!"

Van Spreckdal, after some moments of silence, asked:

"His name?"

"I don't know... but he is at this moment in time in the covered market... he's cutting meat on the third stall on the left as you enter the market hall through the Street of the Bodyguards."

"What do you think?" he said, leaning towards his fellow judge.

"Let that man be sent for," answered the latter in solemn tones.

Various guards, stationed in the corridor, obeyed this order. The judges remained standing still looking at the drawing. I sank down on the straw, my head between my knees, like someone dead.

Soon steps resounded from afar from under the vaults. Those who have not waited for the hour of their deliverance and counted the minutes, long then like centuries... those who have not felt the agonizing feelings of waiting, terror, hope, doubt...those people will not be able to imagine the inner turmoil I was experiencing just then. I could have distinguished the footsteps of the murderer, walking flanked by his guards, from a thousand other similar ones. They were getting nearer...Even the judges themselves seemed nervous. I had raised my head and my heart was in the grip of an iron hand - I was staring at the now closed door. It opened... The man came in... His cheeks were puffy, his broad contracted jaws made the muscles in his face stand out prominently right up to his ears and his little eyes, restless and wild like those of a wolf, glittered under bushy eyebrows of a reddish brown.

Van Spreckdal showed him my drawing without so much as a word being said.

This broad-shouldered sanguine man, having looked at it, went pale... then, letting out a roar which made us all freeze in terror, he stuck out his huge arms and jumped backwards to knock down the guards. There was a frightful struggle outside in the corridor. All that could be heard were the butcher's frantic panting, muffled curses, staccato speech and the feet of the guards, hoisted up off the floor, falling back on the flagstones.

This lasted for over a minute.

Finally the murderer was brought back in, his head lowered, his eye bloodshot, his hands tied up behind his back. He stared once again at the picture of the murder...seemed to ponder it and then, in a low voice, speaking as if to himself, came out with:

"Who was around to have seen me at midnight?"

I had been saved from the hangman's noose!!!

.....

Many years have gone by since this terrible adventure. I no longer do silhouettes or portraits of burgomasters, thank God! By dint of perseverance and hard work, I have staked my claim to a place in the sun and I earn my living honourably by painting works of art, the only end, in my opinion, that any true artist should strive to attain. But the memory of the nocturnal sketch has always stayed in my mind. Sometimes, in the middle of working on something, my thoughts return to it. When that happens I put down my palette and dream for hours on end!

How was it possible for a crime carried out by a man I did not know in a place I had never seen before.... to reproduce itself under my charcoal and chalk so accurately, right down to the finest detail?

Was it by chance? No! And besides what is chance, after all, if not the effect of a cause that we cannot fathom?

Who knows? Nature is much bolder in the construction of its realities than man's imagination in its fantasies.

<pre id="pg-footer"> ***END OF THE PROJECT GUTENBERG

***** This file should be named 36013-8.txt or 36013-8.zip *****

This and all associated files of various formats will be found in:
<https://www.gutenberg.org/dirs/3/6/0/1/36013>

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from public domain print editions means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg-tm electronic works to protect the PROJECT GUTENBERG-tm concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for the eBooks, unless you receive specific permission. If you do not charge anything for copies of this eBook, complying with the rules is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. They may be modified and printed and given away—you may do practically ANYTHING with public domain eBooks. Redistribution is subject to the trademark license, especially commercial redistribution.

***** START: FULL LICENSE *****

**THE FULL PROJECT GUTENBERG LICENSE PLEASE READ THIS BEFORE YOU
DISTRIBUTE OR USE THIS WORK**

To protect the Project Gutenberg-tm mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase "Project Gutenberg"), you agree to comply with all the terms of the Full Project Gutenberg-tm License (available with this file or online at <https://www.gutenberg.org/license>).

Section 1. General Terms of Use and Redistributing Project Gutenberg-tm electronic works

1.A. By reading or using any part of this Project Gutenberg-tm electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg-tm electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg-tm electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. "Project Gutenberg" is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg-tm electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg-tm electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg-tm electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation ("the Foundation" or PGLAF), owns a compilation copyright in the collection of Project Gutenberg-tm electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is in the public domain in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on

the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg-tm mission of promoting free access to electronic works by freely sharing Project Gutenberg-tm works in compliance with the terms of this agreement for keeping the Project Gutenberg-tm name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg-tm License when you share it without charge with others. This particular work is one of the few copyrighted individual works included with the permission of the copyright holder. Information on the copyright owner for this particular work and the terms of use imposed by the copyright holder on this work are set forth at the beginning of this work.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg-tm work. The Foundation makes no representations concerning the copyright status of any work in any country outside the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg-tm License must appear prominently whenever any copy of a Project Gutenberg-tm work (any work on which the phrase "Project Gutenberg" appears, or with which the phrase "Project Gutenberg" is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org

1.E.2. If an individual Project Gutenberg-tm electronic work is derived from the public domain (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase "Project Gutenberg" associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg-tm trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg-tm electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg-tm License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg-tm License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg-tm.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg-tm License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg-tm work in a format other than "Plain Vanilla ASCII" or other format used in the official version posted on the official Project Gutenberg-tm web site (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original "Plain Vanilla ASCII" or other form. Any alternate format must include the full Project Gutenberg-tm License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg-tm works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg-tm electronic works provided that

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg-tm works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg-tm trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."

- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg-tm License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg-tm works.

- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg-tm works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg-tm electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from both the Project Gutenberg Literary Archive Foundation and Michael Hart, the owner of the Project Gutenberg-tm trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread public domain works in creating the Project Gutenberg-tm collection. Despite these efforts, Project Gutenberg-tm electronic works, and the medium on which they may be stored, may contain "Defects," such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or

other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the "Right of Replacement or Refund" described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg-tm trademark, and any other party distributing a Project Gutenberg-tm electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS,' WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg-tm electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg-tm electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg-tm work, (b) alteration, modification, or additions or deletions to any Project Gutenberg-tm work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg-tm

Project Gutenberg-tm is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg-tm's goals and ensuring that the Project Gutenberg-tm collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg-tm and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation web page at <http://www.pgla.org>.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Its 501(c)(3) letter is posted at <http://pglaf.org/fundraising>. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's principal office is located at 4557 Melan Dr. S. Fairbanks, AK, 99712., but its volunteers and employees are scattered throughout numerous locations. Its business office is located at 809 North 1500 West, Salt Lake City, UT 84116, (801) 596-1887, email business@pglaf.org. Email contact links and up to date contact information can be found at the Foundation's web site and official page at <http://pglaf.org>

For additional contact information:

Dr. Gregory B. Newby

Chief Executive and Director

gbnewby@pglaf.org

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg-tm depends upon and cannot survive without wide spread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit <http://pglaf.org>

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg Web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: <http://pglaf.org/donate>

Section 5. General Information About Project Gutenberg-tm electronic works.

Professor Michael S. Hart is the originator of the Project Gutenberg-tm concept of a library of electronic works that could be freely shared with anyone. For thirty years, he produced and distributed Project Gutenberg-tm eBooks with only a loose network of volunteer support.

Project Gutenberg-tm eBooks are often created from several printed editions, all of which are confirmed as Public Domain in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Each eBook is in a subdirectory of the same number as the eBook's eBook number, often in several formats including plain vanilla ASCII, compressed (zipped), HTML and others.

Corrected EDITIONS of our eBooks replace the old file and take over the old filename and etext number. The replaced older file is renamed. VERSIONS based on separate sources are treated as new eBooks receiving new filenames and etext numbers.

Most people start at our Web site which has the main PG search facility:

<http://www.gutenberg.org>

This Web site includes information about Project Gutenberg-tm, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.

EBooks posted prior to November 2003, with eBook numbers BELOW #10000, are filed in directories based on their release date. If you want to download any of these eBooks directly, rather than using the regular search system you may utilize the following addresses and just download by the etext year.

<http://www.ibiblio.org/gutenberg/etext06>

(Or /etext 05, 04, 03, 02, 01, 00, 99,
98, 97, 96, 95, 94, 93, 92, 91 or 90)

EBooks posted since November 2003, with etext numbers OVER #10000, are filed in a different way. The year of a release date is no longer part of the directory path. The path is based on the etext number (which is identical to the filename). The path to the file is made up of single digits corresponding to all but the last digit in the filename. For example an eBook of filename 10234 would be found at:

<https://www.gutenberg.org/1/0/2/3/10234>

or filename 24689 would be found at:
<https://www.gutenberg.org/2/4/6/8/24689>

An alternative method of locating eBooks:
<https://www.gutenberg.org/GUTINDEX.ALL>

*** END: FULL LICENSE *** </pre>

*** END OF THE PROJECT GUTENBERG EBOOK THE
MYSTERIOUS SKETCH ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

This particular work is one of the few individual works protected by copyright law in the United States and most of the remainder of the world, included in the Project Gutenberg collection with the permission of the copyright holder. Information on the copyright owner for this particular work and the terms of use imposed by the copyright holder on this work are set forth at the beginning of this work.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no

restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no

additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.